

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the	)	Docket No. RM26-4-000
Interstate Transmission System	)	

**INITIAL COMMENTS OF
THE MISO TRANSMISSION OWNERS**

The MISO Transmission Owners¹ submit these comments in response to the Notice Inviting Comments issued by the Federal Energy Regulatory Commission (“Commission”) in the above-captioned docket on October 27, 2025, regarding the Advance Notice of

¹ The MISO Transmission Owners for this filing consist of: Ameren Services Company, as agent for Union Electric Company d/b/a Ameren Missouri, Ameren Illinois Company d/b/a Ameren Illinois and Ameren Transmission Company of Illinois; American Transmission Company LLC; Big Rivers Electric Corporation; Central Minnesota Municipal Power Agency; Citizens Electric Corporation; City Water, Light & Power (Springfield, IL); Cleco Power LLC; Cooperative Energy; Dairyland Power Cooperative; Duke Energy Business Services, LLC for Duke Energy Indiana, LLC; East Texas Electric Cooperative; Entergy Arkansas, LLC; Entergy Louisiana, LLC; Entergy Mississippi, LLC; Entergy New Orleans, LLC; Entergy Texas, Inc.; Great River Energy; GridLiance Heartland LLC; Hoosier Energy Rural Electric Cooperative, Inc.; Indiana Municipal Power Agency; Indianapolis Power & Light Company d/b/a AES Indiana; Lafayette Utilities System; MidAmerican Energy Company; Minnesota Power (and its subsidiary Superior Water, L&P); Montana-Dakota Utilities Co.; Northern Indiana Public Service Company LLC; Northern States Power Company, a Minnesota corporation, and Northern States Power Company, a Wisconsin corporation, subsidiaries of Xcel Energy Inc.; Northwestern Wisconsin Electric Company; Otter Tail Power Company; Prairie Power, Inc.; Republic Transmission, LLC; Southern Illinois Power Cooperative; Southern Indiana Gas & Electric Company (d/b/a CenterPoint Energy Indiana South); Southern Minnesota Municipal Power Agency; Wabash Valley Power Association, Inc.; and Wolverine Power Supply Cooperative, Inc. Indianapolis Power & Light Company d/b/a AES Indiana does not join Parts III.C.1-5 and 11-12 of these comments.

Proposed Rulemaking (“ANOPR”) released by the Secretary of Energy (“Secretary”) on October 23, 2025.²

While the MISO Transmission Owners strongly agree with the Secretary that large loads must be able to interconnect to the transmission system in a timely, orderly, and reliable manner, the MISO Transmission Owners respectfully submit that some of the reforms proposed in this ANOPR, depending on how they are shaped into a final rule, could in fact hinder progress being made across the industry to address the unique issues arising from individual large load interconnections. These comments offer the unique perspective of a diverse group of transmission facility-owning entities in Midcontinent Independent System Operator, Inc. (“MISO”)³ with history and expertise on the issues of transmission system management, reliability standards, and interconnection processes.

I. EXECUTIVE SUMMARY

The MISO Transmission Owners appreciate the Secretary’s and the Commission’s focus on one of the most pressing issues facing the MISO region and the country—the interconnection of large loads. The current Administration has stressed the vital importance of timely and efficiently integrating large loads that are critical to maintaining

² *Interconnection of Large Loads to the Interstate Transmission System*, Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000 (Oct. 23, 2025) (“ANOPR”); see *Interconnection of Large Loads to the Interstate Transmission System*, Notice Inviting Comments, Docket No. RM26-4-000 (Oct. 27, 2025). The Secretary issued the ANOPR pursuant to section 403 of the Department of Energy Organization Act, directing the Commission to initiate rulemaking procedures to consider the ANOPR and its potential reforms for the interconnection of large loads to the transmission system. ANOPR at P 1 (citing 42 U.S.C. § 7173).

³ The MISO Transmission Owners are a group of investor-owned vertically-integrated utilities, stand-alone transmission companies, cooperative utilities, and municipal utilities that own electric transmission facilities over which the MISO provides electric transmission service subject to the Commission’s jurisdiction.

our national security, economic prosperity, and scientific leadership.⁴ The Administration has also stressed the critical importance of ample generation and a robust transmission system in integrating large loads.⁵ Consistent with the Administration’s agenda, the MISO Transmission Owners are working proactively with others in the MISO region, both at the state and federal levels, to ensure that large loads are interconnected in an efficient manner and to support the development of the generation and transmission necessary to further integrate large loads efficiently, reliably, and in a manner that avoids unfair cost shifts. While there is still more work to be done, since the 2022 MISO Transmission Expansion Plan (“MTEP”) cycle, the MISO Transmission Owners have sought to build, and MISO has approved, the needed transmission enhancements to accommodate approximately 14.4 gigawatts (“GW”) of large load additions.⁶

While the MISO Transmission Owners agree with the Secretary and the Commission as to the importance of these issues and acknowledge there is room for further enhancement and innovation, the MISO Transmission Owners are concerned that the

⁴ See, e.g., *Removing Barriers to American Leadership in Artificial Intelligence*, The White House (Jan. 23, 2025), <https://www.whitehouse.gov/presidential-actions/2025/01/removing-barriers-to-american-leadership-in-artificial-intelligence/> (“Executive Order 14179”); see *Winning the Race: America’s AI Action Plan*, The White House (July 2025), <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf> (“America’s AI Action Plan”); *Accelerating Federal Permitting of Data Center Infrastructure*, The White House (July 23, 2025), <https://www.whitehouse.gov/presidential-actions/2025/07/accelerating-federal-permitting-of-data-center-infrastructure/> (“Executive Order 14318”).

⁵ See, e.g., Executive Order 14179; America’s AI Action Plan at 1, 14-16.

⁶ This figure was determined by starting with the 2022 MTEP Cycle and looking at transmission projects needed to accommodate new load additions of 50 megawatts (“MW”) or greater. Forty-six such transmission projects, for 14.4 GW of new load, have been approved.

reforms proposed in the ANOPR, including its jurisdictional claims, risk upsetting efforts already underway and significantly delaying the integration of large loads. Assuming the Commission has jurisdiction over the interconnection of *all* large loads to the transmission system as the ANOPR claims, the MISO Transmission Owners urge the Commission to not prejudge whether the Commission should assert any such jurisdiction to enact the proposed reforms. As explained in more detail below, the MISO Transmission Owners, in collaboration with their state regulators, MISO, and other stakeholders in the region, *are* actively working to integrate large loads efficiently and reliably and to advance the development of the necessary generation and transmission infrastructure to support large load integration. Notably, as mentioned above, to date the MISO Transmission Owners will construct, own, and operate the transmission enhancements to support approximately 14.4 GW of large load additions. The MISO Transmission Owners have a long track record of timely developing needed transmission, which is key to enabling the reliable interconnection of large loads and facilitating the delivery of energy in a reliable and secure manner. The reliable interconnection of large loads requires assessment of voltage and stability issues, among others, which may be mitigated with specific transmission facilities, all of which are necessary to ensure these new large loads are served with the utmost reliability given their potential role in national security.

Given the nascency of these issues, pursuing the adoption of a federal, one-size-fits-all approach at this juncture could not only risk delaying the addition of large loads to the system and the incremental infrastructure needed to accommodate those additions, but also frustrate the discovery of new and innovative solutions.⁷ Before pursuing such an

⁷ See *New State Ice Co. v. Liebmann*, 285 U.S. 262, 311 (1932) (Brandeis, J. dissenting) (“To stay experimentation in things social and economic is a grave

approach, best practices have to be given time to be discovered and tested—an effort currently being pursued by the MISO Transmission Owners, MISO, states, and industry participants around the country. If the Commission decides to pursue generic paradigm-shifting action, the MISO Transmission Owners encourage the Commission to ensure that such action allows continued regional flexibility, promotes innovation, ensures reliability and affordability, and respects longstanding state and federal jurisdictional divides. Doing so will ensure that the region’s finite time and resources are allowed to continue to be used to focus on efficiently, reliably, and fairly integrating new large load in the region.

II. COMMENTS

A. The MISO Region Has Already Made Progress Integrating Load Efficiently and Reliably

1. Process for Integrating Load into MISO

The interconnection of load to the transmission system, regardless of size, is largely a matter of state jurisdiction. As such, the transmission owner, load serving entity (“LSE”), and the load owner play lead roles in managing and interconnecting load to the transmission system. Specifically, the load owner seeking to interconnect to MISO’s transmission system coordinates with the appropriate transmission owner and LSE, which are the same entity in a large part of the MISO region. State retail tariffs govern the process for the load owner to request and receive either fully bundled electric service or, in the case of states with retail access, electric delivery service. If the load will be served by a utility with retail rate regulation, that utility utilizes its own time-tested practices and procedures

responsibility. Denial of the right to experiment may be fraught with serious consequences to the Nation. It is one of the happy incidents of the federal system that a single courageous State may, if its citizens choose, serve as a laboratory; and try novel social and economic experiments without risk to the rest of the country.”).

in terms of analyzing the load's impacts on the transmission system. If the load will be served by a utility whose transmission is regulated fully by the Commission (e.g., restructured or independent transmission owner), the MISO Open Access Transmission, Energy and Operating Reserve Markets Tariff ("Tariff" or "MISO Tariff")⁸ in large part outlines the process for obtaining wholesale transmission service. Among other things, the utility may develop and enter into a study agreement, receive a request to conduct a system impact study, or engage with a similar mechanism to analyze the load. Subsequently, the responsible transmission owner, which, again, may also be the LSE, will study whether the proposed load can physically and reliably interconnect with the transmission system, or what upgrades are needed to enable the interconnection. Transmission owners generally have their own individual procedures and planning criteria for interconnecting load to their transmission network developed under unique combinations of state laws, geographic and demographic service territory characteristics, and local transmission and distribution system features. If the load owner decides to move forward with the project, the transmission owner, LSE, and load owner will enter into an agreement to govern providing service or proceed under an existing interconnection agreement.

MISO's role in the process to interconnect large loads is generally limited to the evaluation of transmission system enhancements and coordination once the transmission owner, LSE, and load owner have already followed applicable transmission owner-specific procedures.⁹ Initially, the transmission owner determines if there are any potential

⁸ All capitalized terms in this filing that are not otherwise defined have the same meaning as they have under the Tariff.

⁹ However, review of transmission service requests associated with the new load may also identify impacts and upgrades required to provide transmission service.

reliability issues with the load request and identifies any mitigations to address reliability concerns and related timelines. Transmission owners may continue to respond to and assess customer alternatives, e.g., changes to points of interconnection or ramp rates, to meet the timelines of the interconnecting loads and mitigate any impacts in an acceptable manner. MISO independently reviews all transmission system enhancements (i.e., network upgrades) identified as necessary by the transmission owner to determine their impact on MISO transmission system reliability. Importantly, for projects that cannot wait for the next annual MTEP cycle due to urgent needs, like the timing of large load additions, MISO has used its Expedited Project Review (“EPR”) process to study necessary transmission enhancements.

The EPR process is an open and transparent process that permits MISO to study transmission projects outside of the regular MTEP cycle.¹⁰ In the event that a transmission owner determines that system conditions warrant the urgent development of system enhancements, MISO uses a streamlined approval process for reviewing and approving the project proposed by the transmission owner. MISO’s decision is provided to the transmission owner within thirty days of a project’s submittal to MISO unless a longer

¹⁰ The EPR process is detailed in Section 4.1.4 of Business Practices Manual 20 (Transmission Planning) and governed by Appendix B, Section VII of the Transmission Owners’ Agreement, and Section I.D.1.c of Attachment FF to the Tariff. *Business Practices Manual: Transmission Planning, Manual No. 020*, Midcontinent Independent System Operator, Inc., section 4.1.4 (Rev. 33, July 1, 2025), <https://cdn.misoenergy.org/BPM-020%20Transmission%20Planning113822.zip?v=20250124144741> (follow document titled “BPM-020-r33_Transmission Planning_CLEAN.pdf” in zip file) (“Business Practices Manual 20”); Agreement of Transmission Facilities Owners to Organize the Midcontinent Independent System Operator, Inc., a Delaware Non-Stock Corporation, Appendix B, Section VII; MISO Tariff, Attachment FF, section I.D.1.c.

review period is mutually agreed upon. EPRs allow for the quick incremental addition of transmission and load to the electric grid should the need arise.

Once MISO's review is complete, any necessary EPR projects are considered approved by MISO, the MTEP models are updated, and the transmission owner is expected to move forward with the implementation of the project to meet its obligations and requirements as provided for in the Transmission Owner's Agreement. If no network upgrades are required to interconnect a proposed load, the transmission owner is not required to complete an out-of-cycle MTEP update, but must still coordinate with MISO's planning and operational groups.

The responsible LSE and transmission owner are also expected to submit demand and load data to MISO as part of the next MTEP study cycle for transmission system planning purposes.¹¹

2. Recent Efforts to Ensure Adequate Transmission and Generation for Integrating New Load

Over the last several years, the MISO Transmission Owners, together with MISO, member states, and other stakeholders, have been and continue to proactively work to ensure that the interconnection of large loads in MISO is realized in an efficient and fair manner that does not jeopardize reliability or affordability. Although large loads can present unique challenges, they also present unique economic opportunities, which the stakeholders in the MISO region, including the MISO Transmission Owners, are keenly focused on realizing.

¹¹ See, e.g., MISO Tariff, Attachment FF, sections I.C.7 & 8; Business Practices Manual 20, sections 4.3.3.2, 3.3.2.

The MISO Transmission Owners are dedicated to ensuring a robust transmission system and facilitating and maintaining resource adequacy in the region to support new large loads. For example, the Draft MTEP25 Report consists of transmission projects to facilitate the reliable interconnection of 11.6 GW of new load.¹² Last year, MTEP24 included \$21.8 billion of long-range transmission projects, which provide “a robust regional backbone supporting 115.7 GW” of resource enablement.¹³ Additionally, after Commission approval of MISO’s Expedited Resource Addition Study (“ERAS”) process in July 2025, which is fast-tracking needed new generation to meet growing load,¹⁴ forty-seven projects from LSEs representing more than 26,500 MW of proposed new capacity were submitted.¹⁵ The first ten projects selected for expedited study, across all three MISO regions, representing a total installed capacity of 5,300 MW, were announced in early September.¹⁶ In addition, individual MISO Transmission Owners are engaged in several

¹² *Draft MTEP25 Report*, Midcontinent Independent System Operator, Inc., Chapter 4.1 at 5 (Sep. 26, 2025), <https://cdn.misoenergy.org/MTEP25%20Chapter%204%20-%20Local%20Reliability%20Planning720396.pdf?v=20250929111625> (“Draft MTEP25 Report”). On November 17, 2025, the MTEP25 Report was approved by the System Planning Committee of the MISO Board of Directors and will be presented to the full MISO Board for consideration on December 11, 2025. Because of the November 21, 2025, the MISO Board has not yet approved MTEP25, the MISO Transmission Owners will cite the report as Draft.

¹³ *MTEP24 Report*, Midcontinent Independent System Operator, Inc., 80, 88 (Dec. 11, 2024), <https://cdn.misoenergy.org/MTEP24720395.zip> (“MTEP24 Full Report”) (follow document titled “MTEP Full Report.pdf” in zip file).

¹⁴ *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025).

¹⁵ *MISO announces first 10 ERAS Projects*, Midcontinent Independent System Operator, Inc. (Sept. 4, 2025), <https://www.misoenergy.org/meet-miso/media-center/2025---news-releases/miso-announces-first-10-eras-project/>.

¹⁶ *Id.*

initiatives to meet the growing demand of large load additions.¹⁷ Below are a few of the recent initiatives intended to bolster these efforts.

As part of its Long-Range Transmission Planning (“LRTP”) process, the MISO Transmission Owners, in collaboration with MISO, member states, and other stakeholders, developed and the MISO Board of Directors approved in December 2024 the Tranche 2.1 portfolio, a 3,631 mile 345 kV and 765 kV transmission backbone portfolio of projects that address reliability and economic issues created by load growth, weather variability, and new resource interconnections, and that are needed to support regional power transfer

¹⁷ For example, the Louisiana Public Service Commission recently approved Entergy Louisiana’s plans to build new dispatchable generation and 1.5 GW of renewable resources, along with several new transmission lines and substations to support Meta’s data center complex in Richland Parish. *Entergy Louisiana receives LPSC approval for major infrastructure investments to support Meta’s data center and improve reliability*, Entergy Corporation (Aug. 20, 2025), <https://www.entergy.com/news/entergy-louisiana-receives-lpsc-approval-for-major-infrastructure-investments-to-support-metas-data-center-and-improve-reliability>. Entergy Arkansas recently announced that it would provide power for Google’s \$4 billion cloud and artificial intelligence infrastructure through a new 600 MW solar and 350 MW battery storage system in that state. *Entergy Arkansas powers Google’s \$4B investment in the state*, Entergy Corporation (Oct. 20, 2025), <https://www.entergy.com/news/entergy-arkansas-powers-googles-4b-investment-in-the-state>. Northern Indiana Public Service Company recently announced plans to construct new dispatchable generation facilities to serve a “large, investment grade company” to meet the unnamed company’s growing data center load needs. *NIPSCO inks deals to power unnamed company’s data centers*, Indiana Economic Digest (Sep. 26, 2025), <https://indianaeconomicdigest.net/Content/Default/Also-In-The-News/Article/NIPSCO-inks-deals-to-power-unnamed-company-s-data-centers/-3/5307/120016>; see *Form 8-K*, *NiSource Inc.*, United States Securities and Exchange Commission (Sep. 22, 2025), <https://www.sec.gov/Archives/edgar/data/1111711/000119312525209933/d935797d8k.htm>. Xcel Energy recently announced a five-year \$45 billion investment plan to support, among other things, an expected pipeline of new load of 9 GW by 2030 across Xcel’s footprint. *Xcel Welcomes Load Growth from Data Centers*, RTO Insider LLC (Oct. 31, 2025), <https://www.rtoinsider.com/90904-xcel-welcomes-load-growth-data-centers/>.

within MISO.¹⁸ This is arguably the most significant initiative undertaken in the MISO region, that among other benefits, will accelerate generator interconnection and support large load additions. Another recent transmission planning enhancement was in response to the increase in large loads, in 2024 and 2025, whereby MISO, the MISO Transmission Owners, and other stakeholders worked to refine the EPR process to advance urgent transmission projects outside the standard MTEP cycle. With the refinements, MISO creates sequential and well-defined study cases for EPRs on an every-other month basis, while allowing MISO to quickly approve new requests, potentially within thirty days.

The MISO Transmission Owners also supported the August 2024, filing by MISO, together with Southwest Power Pool, Inc. (“SPP”), to implement the Joint Targeted Interconnection Queue (“JTIQ”) framework.¹⁹ The JTIQ framework enables MISO and SPP to develop a portfolio of “backbone network upgrades” to facilitate the interconnection of over 28 GW of generation near the seam between the Regional Transmission Organizations (“RTOs”) to serve load in both regions.²⁰ The MISO Transmission Owners also supported the June 2025 filing by MISO to establish the ERAS process, which, as described above, is fast-tracking needed new generation to address urgent resource adequacy and reliability needs in the near term due, in part, to significant projected load growth.²¹ The MISO Transmission Owners also continue to work with MISO to address

¹⁸ *MTEP24 Executive Summary*, Midcontinent Independent System Operator, 2, 13, 14-15 (Dec. 11, 2024), <https://cdn.misoenergy.org/MTEP24720395.zip> (follow document titled “MTEP Executive Summary.pdf” in zip file).

¹⁹ *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,105 (2025).

²⁰ *Midcontinent Indep. Sys. Operator, Inc.*, 189 FERC ¶ 61,108, at P 63 (2024).

²¹ *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064.

the high volume of interconnection requests, including by supporting MISO’s efforts to use and improve upon Pearl Street Technologies’ Suite of Unified Grid Analyses with Renewables (“SUGAR”) platform. SUGAR significantly reduces the time needed to process early stages of generator interconnection studies by automating power flow modeling and identifying transmission constraints and potential mitigation.²²

The MISO Transmission Owners appreciate the ANOPR’s statement that the proposed reforms are not intended to discourage entities from submitting filings under Federal Power Act (“FPA”) section 205²³ to address these issues.²⁴ MISO and the MISO Transmission Owners have done just that in recent new and revised processes approved by the Commission. The MISO Transmission Owners prefer to continue to exercise their FPA section 205 rights to address the interconnection of large loads, and avoid the potential that the reforms as proposed in the ANOPR could interfere with the ongoing efforts of the MISO Transmission Owners and the MISO region at large.²⁵

²² *MISO’s Benchmarking of Pearl Street SUGAR*, Midcontinent Independent System Operator, Inc., 3 (Apr. 15, 2025), <https://cdn.misoenergy.org/MISO%20Benchmarking%20of%20Pearl%20Street%20SUGAR697461.pdf>; *see also* System Planning Committee of the Board of Directors, *Long Term Resource Adequacy & Interconnection Queue Update*, Midcontinent Independent System Operator, Inc., 11 (Sep. 16, 2025), https://cdn.misoenergy.org/06_2025-09-16_SPC_Open_Long%20Term%20Resource%20Adequacy%20%20Interconnection%20Queue%20Update_FINAL717559.pdf (“SUGAR Software automates processes to reduce time-consuming steps of study process”).

²³ 16 U.S.C. § 824d.

²⁴ ANOPR at P 32.

²⁵ It is axiomatic that there can be more than one just and reasonable approach. *See, e.g., Midcontinent Indep. Sys. Operator, Inc.*, 162 FERC ¶ 61,176, at P 57 (2018) (“In its orders, the Commission has consistently rejected a one-size-fits-all approach in the various RTOs/[independent system operators (“ISOs”)] due, in large part, to significant differences between each region and that there can be more

3. *The MISO Transmission Owners, Together with MISO and Other Stakeholders in the MISO Region, Have Had Success Adding Large Loads*

As stated above, since the 2022 MTEP cycle, the MISO Transmission Owners have worked to interconnect and MISO has approved the needed transmission enhancements to accommodate approximately 14.4 GW of large load additions.²⁶ Load growth is the single largest driver for MTEP25.²⁷ The Draft MTEP25 Report includes transmission projects needed to accommodate the interconnection of 11.6 GW of spot load additions.²⁸ The MISO region is seen as an advantageous location for large load to interconnect as illustrated by the roughly 15.5 GW of existing large load and new load additions announced throughout the region by the end of 2024,²⁹ and recent announcements.³⁰ The Commission

than one just and reasonable rate.”); *Louisville Gas & Elec. Co.*, 114 FERC ¶ 61,282, at P 29 (2006) (“[T]he just and reasonable standard under the FPA is not so rigid as to limit rates to a ‘best rate’ or ‘most efficient rate’ standard. Rather, a range of alternative approaches often may be just and reasonable.”).

²⁶ As noted above, this figure was determined by starting with the 2022 MTEP Cycle and looking at transmission projects needed to accommodate new load additions of 50 MW or greater. Forty-six such transmission projects, for 14.4 GW of new load, have been approved.

²⁷ Draft MTEP25 Report, Chapter 4.1 at 4.

²⁸ *Id.* at 5.

²⁹ *Large Load Facility Additional Information*, Midcontinent Independent System Operator, Inc. (Dec. 6, 2024), <https://cdn.misoenergy.org/NEW%20LOAD%20ANNOUNCEMENTS%20IN%20MISO%20REGIONS%2012062024684954.pdf> (at the end of 2024, MISO estimated that new large load additions announced in MISO South, Central, and North Regions would amount to approximately 13 GW).

³⁰ See, e.g., Michael Doorn, *ND announces \$3 billion data center, energy providers prepare*, Keloland.com (Aug. 19, 2025), <https://www.keloland.com/keloland-com-original/nd-announces-3-billion-data-center-energy-providers-prepare/> (“A new \$3 billion data center in North Dakota is set to break ground in September, bringing North Dakota’s data center count up to 22 according to a Data Center Map website. South Dakota has 5 possible data centers, according to Data Center Map.”); Google

should take into account the successful aspects of large load interconnections that the MISO Transmission Owners have accomplished as it considers the scope and content of any rulemaking on the topic, as the record and Commission demonstrate may be necessary under FPA section 206.³¹

B. Need For Reform and Assertion of Jurisdiction Risk Frustrating the Interconnection of Large Loads in the MISO Region

The ANOPR, including its stated need for reform, raises several significant legal and policy questions, including the extent to which the Commission proposes to exercise jurisdiction over bundled retail sales. While the MISO Transmission Owners appreciate the Secretary's and the Commission's interest in and support of the efficient and reliable integration of large loads, the MISO Transmission Owners are concerned that some of the reforms proposed in the ANOPR, including certain aspects of its jurisdictional claims, actually risk delaying the integration of large loads. Assuming *arguendo* that the Commission has jurisdiction over the interconnection of large loads as the ANOPR claims,

Locating New Data Center in West Memphis, Arkansas with Multi-Billion Dollar Investment, Arkansas Economic Development Commission (Oct. 2, 2025), <https://www.arkansasedc.com/news-events/newsroom/detail/2025/10/02/google-locating-new-data-center-in-west-memphis--arkansas-with-multi-billion-dollar-investment> (“Google’s multi-billion-dollar investment in West Memphis is one of the largest investments ever in our state.”); *Gov. Whitmer on Stargate Announcement from Open AI, Oracle, & Related Digital Creating Thousands of Jobs, Largest Investment in Michigan History*, Governor Gretchen Whitmer (Oct. 30, 2025), <https://www.michigan.gov/whitmer/news/press-releases/2025/10/30/whitmer-on-stargate-announcement-from-openai-oracle-related-digital-creating-thousands-of-jobs> (“[B]ig projects in next-generation industries from cars and clean energy to semiconductors and batteries.”).

³¹ 16 U.S.C. § 824e.

the MISO Transmission Owners urge the Commission not to prejudge whether it should assert any such jurisdiction.³²

The MISO Transmission Owners respectfully submit that the generic action contemplated in the ANOPR and its purported claims of jurisdiction, are not, “in fact ‘necessary to eliminate undue discrimination and protect electricity customers,’”³³ especially in the MISO region. As shown above, the MISO Transmission Owners are successfully integrating large loads reliably and efficiently. Also, unlike the record in Order No. 888³⁴ and Order No. 2003,³⁵ there does not appear to be a record of significant

³² See *New York v. FERC*, 535 U.S. 1, 35 (2002) (Thomas, J., dissenting) (“To be sure, I would not prejudge whether [the Commission] must require that transmission used for bundled retail sales be subject to [the Commission]’s open access tariff. At a minimum, however, [the Commission] should have determined whether regulating transmission used in connection with bundled retail sales was in fact ‘necessary to eliminate undue discrimination and protect electricity customers.’”); *id.* at 42 (Thomas, J., dissenting) (“I would not, as petitioner Enron requests, compel [the Commission] to apply the [open access transmission tariff to bundled retail transmissions. I would vacate the Court of Appeals’ judgment and require [the Commission] on remand to engage in reasoned decisionmaking to determine whether there is undue discrimination with respect to transmission associated with retail bundled sales, and if so, what remedy is appropriate.”).

³³ *Id.* at 35 (Thomas, J., dissenting).

³⁴ *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Services by Public Utilities; Recovery of Stranded Costs by Public Utilities and Transmitting Utilities*, Order No. 888, 75 FERC ¶ 61,080, 1991–1996 FERC Stats. & Regs., Regs. Preambles ¶ 31,036 (1996), *order on reh’g*, Order No. 888-A, 78 FERC ¶ 61,220, 1996–2000 FERC Stats. & Regs., Regs. Preambles ¶ 31,048, *order on reh’g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *reh’g denied*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff’d in part & remanded in part sub nom. Transmission Access Policy Study Group v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff’d sub nom. New York v. FERC*, 535 U.S. 1 (2002).

³⁵ *Standardization of Generator Interconnection Agreements and Procedures*, Order No. 2003, 104 FERC ¶ 61,103 (2003), *order on reh’g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh’g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh’g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff’d sub nom. Nat’l*

large load-related interconnection disputes.³⁶ Nor does the ANOPR cite any evidence of undue discrimination involving the interconnection of large loads. In fact, there is robust competition among utilities and across regions to interconnect large loads efficiently. For example, the MISO region, in particular, which is predominantly made up of vertically integrated utilities, has every incentive to interconnect loads as efficiently as possible. Given the nascency of the issues raised in the ANOPR and that not all Commission-jurisdictional utilities are similarly situated (e.g., vertically integrated, stand-alone transmission), the MISO Transmission Owners strongly encourage the Commission to refrain from taking generic action to develop a one-size-fits-all approach and instead, support transmission owners and transmission providers in their pursuit of solutions that facilitate the expeditious integration of large loads in a manner that preserves reliability and affordability.

If the Commission nevertheless decides that generic action is required, the MISO Transmission Owners urge the Commission to further clarify the extent to which the Commission proposes to exercise jurisdiction over retail load. The ANOPR states that “[e]ven if the large load seeking to interconnect to the transmission system is an end-use customer, the proposal does not exert jurisdiction over any retail sales to the large load,”³⁷ that the Commission has “exclusive jurisdiction over the transmission of electric energy in

Ass’n of Regul. Util. Comm’rs v. FERC, 475 F.3d 1277 (D.C. Cir. 2007), *cert. denied*, 552 U.S. 1230 (2008).

³⁶ ANOPR at P 8 (stating that, in Order No. 2003, the “Commission noted an increasing number of interconnection-related disputes, and determined that ‘the case-by-case approach is an inadequate and inefficient means to address interconnection issues’”).

³⁷ *Id.* at P 15.

interstate commerce, including the rates, terms, and conditions of transmission service, and all facilities for such transmission or sale of electric energy at wholesale in interstate commerce,”³⁸ and “any large load that seeks to interconnect to the transmission system does so to obtain transmission service.”³⁹ The ANOPR also states that “the Commission’s jurisdiction should be limited to interconnections directly to transmission facilities” to avoid “*even arguably* affecting the States’ jurisdiction.”⁴⁰

One reading of the foregoing is that the ANOPR is purporting to exert jurisdiction only over large loads that specifically seek to interconnect to the transmission system to obtain transmission service, and not loads of franchised public utilities (i.e., load serving obligations) that are generally planned for as network load (i.e., bundled retail sales). The interconnection to retail load where no transmission service is being requested may be distinguishable from the customer seeking transmission service allowed by state laws. In any future action on this ANOPR, the Commission should clarify that it is not exercising jurisdiction over load interconnections where the load is the recipient of bundled transmission service under state law.⁴¹

C. Comments on the ANOPR’s Fourteen Principles

The issues raised in many of the principles being proposed in the ANOPR depend heavily on the specific facts and circumstances presented in particular situations, including

³⁸ *Id.* at P 16.

³⁹ *Id.*

⁴⁰ *Id.* at 18.

⁴¹ This situation is also distinguishable from a generator, as part of a hybrid facility, selling energy at wholesale, or the hybrid facility selling energy at wholesale or arranging for and taking transmission service.

applicable state laws and regulations. As such, the MISO Transmission Owners provide high-level feedback based on the broad language of the proposed principles and facts presented. The MISO Transmission Owners also emphasize the importance of permitting flexibility in any reforms and how they are implemented. Relatedly, the MISO Transmission Owners encourage the Commission to permit deviations from any final rule consistent with (1) Order Nos. 888, 890, 2003, 2006, 845, and 2023 where the Commission applied the “consistent with or superior to” standard when considering proposals from non-RTO/ISO transmission providers to deviate from the requirements of the final rule;⁴² and (2) Order Nos. 2003, 2006, 845, and 2023 where the Commission permitted the use of the

⁴² Order No. 888 at 31,769-770; *Preventing Undue Discrimination and Preference in Transmission Service*, Order No. 890, 118 FERC ¶ 61,119, at P 109 (“[W]e reiterate that any departures from the *pro forma* [open access transmission tariff] proposed by an ISO or an RTO must be ‘consistent with or superior to’ the *pro forma* [open access transmission tariff] in this Final Rule.”), *order on reh’g*, Order No. 890-A, 121 FERC ¶ 61,297 (2007), *order on reh’g & clarification*, Order No. 890-B, 123 FERC ¶ 61,299 (2008), *order on reh’g & clarification*, Order No. 890-C, 126 FERC ¶ 61,228, *order on clarification*, Order No. 890-D, 129 FERC ¶ 61,126 (2009); Order No. 2003 at P 825; *Standardization of Small Generator Interconnection Agreements and Procedures*, Order No. 2006, 111 FERC ¶ 61,220, at PP 546-547, *order on reh’g*, Order No. 2006-A, 113 FERC ¶ 61,195 (2005), *order on clarification*, Order No. 2006-B, 116 FERC ¶ 61,046 (2006); *Reform of Generator Interconnection Procedures and Agreements*, Order No. 845, 163 FERC ¶ 61,043, at P 43 (2018) (explaining that a transmission provider that is not an RTO/ISO that seeks a variation from the requirements of the final rule must present its justification for the variation as consistent with or superior to the *pro forma* LGIA or *pro forma* LGIP), *order on reh’g & clarification*, Order No. 845-A, 166 FERC ¶ 61,137, *order on reh’g & clarification*, Order No. 845-B, 168 FERC ¶ 61,092 (2019); *Improvements to Generator Interconnection Procedures and Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at P 1764, *limited order on reh’g*, 185 FERC ¶ 61,063 (2023), *order on reh’g & clarification*, Order No. 2023-A, 186 FERC ¶ 61,199, *errata notice*, 188 FERC ¶ 61,134 (2024), *appeals pending sub nom.* Petition for Review, *Advanced Energy United v. FERC*, Nos. 23-1282, et al. (D.C. Cir. Oct. 6, 2023).

“independent entity variation” standard when considering proposals from RTOs/ISOs.⁴³

As additional facts and circumstances are made known, the MISO Transmission Owners may have additional comments.

1. **First Principle:** “[T]o avoid *even arguably* affecting the States’ jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter, the Commission’s jurisdiction should be limited to interconnections directly to transmission facilities, consistent with the Commission’s seven-factor test.”⁴⁴

As stated above, the MISO Transmission Owners urge the Commission not to disrupt the current state and federal jurisdictional divide. The MISO region has been successfully integrating new load for decades, including large loads. Disturbing these well-established and successful processes for an unproven interconnection paradigm that rests on untested jurisdictional authority, risks delaying the interconnection of large loads and potentially jeopardizing the nation’s ambitious technological goals,⁴⁵ national security, and economic interests.

⁴³ Order No. 2003 at P 827 (“With respect to an RTO or ISO . . . we will allow it to seek ‘independent entity variations’ from the Final Rule This is a balanced approach that recognizes that an RTO or ISO has different operating characteristics depending on its size and location and is less likely to act in an unduly discriminatory manner than a Transmission Provider that is a market participant.”); Order No. 2006 at PP 447, 549; Order No. 845 at P 556; Order No. 2023 at P 1764.

⁴⁴ ANOPR at P 18 (citation omitted).

⁴⁵ Executive Order 14318 (Accelerating Federal Permitting of Data Center Infrastructure).

2. **Second Principle:** “[C]onsistent with the Commission’s *pro forma* LGIP and LGIA, the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW. We seek comment on alternative thresholds, including whether such a threshold is necessary at all.”⁴⁶

Establishing any brightline threshold is a balancing act between precision and workability, especially as it pertains to defining “large loads.” Experience and judgment play a critical role in determining that balance. Should the Commission elect to pursue the reforms proposed in the ANOPR, the MISO Transmission Owners recommend that the Commission provide transmission providers and their stakeholders significant flexibility in defining large loads, as they have the technical experience and judgment to appropriately and reasonably weigh operational, reliability, and administrative factors that are critical to defining large loads.

If the Commission moves forward with defining large loads using a MW threshold, the MISO Transmission Owners provide a few key considerations the Commission should take into account. First, a threshold based solely on the MW size of load is too rough of a measure when developing a large load definition. As the North American Electric Reliability Corporation (“NERC”) explained, several factors should also be considered, such as footprint, load ramp rates, real-time behavior and flexibility, protection systems, and backup power schemes.⁴⁷

⁴⁶ ANOPR at P 19.

⁴⁷ *Characteristics and Risks of Emerging Large Loads: Large Loads Task Force White Paper*, North American Electronic Reliability Corporation, v (July 2025), https://www.nerc.com/globalassets/who-we-are/standing-committees/rstc/3_doc_white-paper-characteristics-and-risks-of-emerging-large-loads.pdf.

Second, the 20 MW threshold is too low. NERC’s Large Load Task Force (“LLTF”) analyzed the reliability impacts related to emerging large loads (e.g., data centers (including cryptocurrency mining, and artificial intelligence (“AI”)), industrial facilities, and hydrogen production facilities).⁴⁸ As relevant here, in November 2024, a subgroup of the NERC LLTF conducted an informal survey to gather feedback from participants on what load size should qualify as “large.”⁴⁹ Importantly, NERC’s survey revealed that “large” may be relative to other factors, such as the voltage to which the load is interconnected.⁵⁰ Retail tariffs may also include MW thresholds, and any proposed reform should complement such requirements.

Third, any threshold in a proposed rule should distinguish between pre-existing large loads or those in the process of interconnecting on the one hand, and new large loads, on the other. As large loads continue to seek to interconnect, any proposed rule would have to provide a detailed transition process, explaining when such a rule would become effective and how it would impact loads already at various stages of interconnection.

⁴⁸ *Id.*

⁴⁹ *Id.*

⁵⁰ Indicative of the need for regional flexibility in this regard are two recent filings related to large loads. *See* High Impact Load Tariff Filing of Tri-State Generation and Transmission Association, Inc., at 12, Docket No. ER25-3316-000 (Aug. 28, 2025); Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment of Southwest Power Pool, Inc., Docket No. ER26-247-000 (Oct. 24, 2025). Tri-State Generation and Transmission Association, Inc. (“Tri-State”) and SPP both recently submitted revisions to their respective Tariffs related high impact large loads. The transmission providers proposed different definitions for large loads based on their regional circumstances and operational experience.

As shown above, there are many factors that should be considered in defining large loads.⁵¹ Accordingly, should the Commission proceed with the proposed reforms, the MISO Transmission Owners again urge the Commission to provide as much flexibility as possible in determining the appropriate criteria and threshold for any of the ANOPR's interconnection-related rules.

3. **Third Principle:** “[T]o the extent practicable, load and hybrid facilities should be studied together with generating facilities. Such an approach will allow for efficient siting of loads and generating facilities and thereby minimize the need for costly network upgrades. For example, siting a large load near or at the same point of interconnection as a new generating facility could reduce the network upgrades needed to interconnect only the load or only the generating facility.”⁵²

In order to comment meaningfully on the Third Principle, more information is needed. In the MISO region, load integration and generation interconnection are studied separately because they have separate impacts on the bulk electric system. This is vitally important for planning and reliability purposes, as MISO and its transmission owners need to be able to understand the reliability implications of increasing both sides of the equation. Relatedly, for operational visibility, load and generation are also metered separately. Load and generation also have distinct cost allocation methodologies with respect to necessary transmission upgrades—load pays for transmission upgrades through their transmission

⁵¹ *Large Loads Co-Located at Generating Facilities*, Prepared Remarks of Jennifer Curran on Behalf of the Midcontinent Independent System Operator, Inc., Docket No. AD25-8-000, at 14 (“[U]niversal definition of ‘large load’ should not be based solely on size. Instead, MISO recommends a hybrid approach to determining what constitutes a ‘large load.’ The hybrid approach could consist of: (i) NERC registration or NERC Reliability Standards development; and (ii) allowing ISO/RTOs to determine specific minimum thresholds to support market registration and application processes that fit the unique needs of their footprints.”).

⁵² ANOPR at P 20.

charges under Schedule 9 of the MISO Tariff and generators generally pay the “but for” costs associated with their interconnection. Under these existing processes, large loads are efficiently and reliably integrated into the MISO region. Any reform proposed in relation to this principle should complement these current practices and provide regional flexibility.

4. **Fourth Principle:** “[L]ike generating facilities, load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties. These provisions deter speculative projects and provide transmission providers with more useful information to more accurately forecast demand on their systems. We seek comment on the extent to which the existing study deposits, readiness requirements, and withdrawal penalties can be adopted. We also seek comment on whether additional commitments or financial penalties would be appropriate.”⁵³

This is another area where supporting flexibility would be beneficial before crafting any one-size-fits-all solution. Speculative load requests do exist, but to deter speculative load requests, many transmission owners and LSEs already require financial commitments from load customers to develop the transmission facilities needed to serve new large loads. Others are actively pursuing adding similar commitments through their state regulators. Any reforms proposed in furtherance of the Fourth Principle should complement, and avoid duplicating, these financial and other readiness requirements.

5. **Fifth Principle:** “[H]ybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested. For example, a hybrid facility consisting of a 500 MW load and a 600 MW generating facility may seek no withdrawal rights and 100 MW of injection rights. This provides incentives for co-location with new generation facilities and ensures efficient buildout of the transmission system.”⁵⁴

The Commission recently recognized in its Order to Show Cause on co-location of large loads at generating facilities in PJM that “the issue of co-location will often depend

⁵³ *Id.* at P 21.

⁵⁴ *Id.* at P 22 (citation omitted).

heavily on the specific facts and circumstances presented in particular situations,” including jurisdictional considerations.⁵⁵ Given the limited facts in the Fifth Principle, the MISO Transmission Owners offer these high-level comments. First, large load owners should only be able to co-locate and contract for power directly from generators to the extent state laws and regulations allow. Second, it is critical to both system planning and operational awareness that load and generation are studied and metered separately, on a gross rather than a net basis. Third, it is also critical for cost allocation purposes that load and generation are metered separately and load is treated as an in-front-of-the-meter customer because a hybrid facility that is not fully islanded from the transmission system is still benefitting from the transmission system.⁵⁶

⁵⁵ *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,115, at P 68 (2025).

⁵⁶ *See, e.g., Amtrak v. PPL Elec. Utils. Corp.*, 173 FERC ¶ 61,043 (2020) (rejecting Amtrak’s cost causation arguments that sought to lower its transmission charges based on actual use of the transmission system, finding that Amtrak was appropriately being charged network service under the PJM tariff for its entire load because Amtrak’s load had been designated as network load and was being served by the output of a designated Network Resource); Order No. 888-A at 30,257 (finding that a split system (i.e., division of a discrete load between point-to-point and network services) creates the potential for a customer to evade some or all of its load ratio share cost responsibility for network services by using behind the meter generation during monthly peaks to reduce its load ratio share below its actual, typical monthly peak usage, resulting in a rate that is subsidized by other network customers); *id.* at 30,259 (explaining that “splitting a discrete load is antithetical to the concept of network service” because “a load at a discrete point of delivery cannot be partially integrated—it is either fully integrated or not integrated”); *Idaho Power Co.*, 106 FERC ¶ 61,329 (2004) (rejecting Bonneville Power Administration’s attempt to remove certain of its load from its load ratio share); *Ameren Servs. Co. v. Prairieland Energy Inc.*, 131 FERC ¶ 61,125 (2010) (finding that network customer failed to comply with the tariff by not designating its total load as network load); *Arizona Pub. Serv. Co.*, 151 FERC ¶ 61,191 (2015) (finding that a network customer’s request to designate less than its entire load as network load violated both the transmission provider’s open access transmission tariff and longstanding Commission policy, which require network customers to designate their entire load as network load to receive network).

6. **Sixth Principle:** “[A]ny hybrid interconnection shall be required to install the system protection facilities necessary to prevent unauthorized injections or withdrawals that exceed the respective rights. We seek comment on whether other operational limitations should be considered. We also seek comment on the minimum technical requirements for such system protection facilities, whether a hybrid interconnection customer should be subject to penalties for unauthorized injections or withdrawals, how any such penalties should be designed, and how such penalties should be allocated to other transmission customers.”⁵⁷

While the MISO Transmission Owners are not opposed to hybrid facilities being required to install protective relay equipment to prevent unauthorized injections or withdrawals, the MISO Transmission Owners caution the Commission that system protection facilities do not guarantee the prevention of unauthorized injections or withdrawals. This is one of the reasons that it is imperative from a reliability perspective that the load and generation of a hybrid facility are studied and metered separately. Without separate metering for load and generation, a large hybrid facility could present operational and system reliability concerns with the potential, during high-stress periods, for thermal overloads on particular lines.

In addition, the MISO Transmission Owners have concerns about the effectiveness of financial penalties to deter unauthorized injections or withdrawals. In particular, financial penalties may not be sufficient to deter such behavior, and they do not resolve the underlying reliability harms that would result from unauthorized injections or withdrawals. Thus, on this principle, the MISO Transmission Owners support flexibility for retail jurisdictions to devise effective methods to deter unauthorized injections or withdrawals.

⁵⁷

ANOPR at P 23.

7. **Seventh Principle:** “[T]he interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited. The system operator’s ability to control such facilities through curtailment and/or dispatch must be sufficient for the system operator to integrate the facility into both operations and system planning. This ensures the timely and orderly addition of large loads to the transmission system in a safe, reliable, and non-discriminatory manner. We seek comment on whether this should be accomplished through a serial interconnection study process or by some other means. We also seek comment on appropriate deadlines for such an expedited study process, including whether such studies can be completed in 60 days.”⁵⁸

In order to comment meaningfully on the Seventh Principle, more information is needed. It is unclear under what circumstances large loads would be allowed to be curtailable or hybrid facilities would be curtailable/dispatchable. Is this an alternative when there is insufficient generation to serve such loads? Or is it related to insufficient transmission? Would the arrangement be temporary or permanent? The ANOPR does not provide an explanation. Also, does the load pose heightened reliability risks? Without such information it is difficult for the MISO Transmission Owners to meaningfully comment. Lastly, it is unclear whether there would be significant demand for such a service, given the electricity needs of many large loads.

8. **Eighth Principle:** “[L]oad and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies. We seek comment on whether such costs should be offset through a crediting mechanism and, if so, over how many years.”⁵⁹

First, requiring direct assignment of upgrade costs to interconnecting load would mark a fundamental shift when there is no clear basis or purpose for doing so. The Commission should recognize this, and clarify that the ANOPR proposal was not intended

⁵⁸ *Id.* at P 24.

⁵⁹ *Id.* at P 25.

to suggest such a fundamental shift with the potential of forcing transmission owners to forgo meaningful compensation.⁶⁰ The MISO Transmission Owners strongly urge the Commission to avoid mandating such transformational reforms that could create untenable circumstances. Instead, the regions and individual utilities should be allowed to continue focusing on making existing processes more efficient and ensuring reliable and affordable operation of the grid. This approach will also respect the roles of the local utility and state regulators in developing approaches to the interconnection of large load, recognizing that the large loads can present unique challenges that may be best addressed with flexible approaches, including ones to mitigate against unjust cost shifting (e.g., forms of financial assurance).

In addition, the basis for the Commission's decision in Order No. 2003 to have generators provide the initial funding for network upgrades is not applicable to load. Under long-standing Commission precedent, the costs of network upgrades required to interconnect load are allocated to transmission customers through transmission rates under Schedule 9 of the MISO Tariff. LSEs, in turn, pass on those costs to their retail customers. It is unclear why or how crediting would be appropriate in this circumstance.

⁶⁰ The MISO Transmission Owners request that the Commission avoid any funding mechanism that would create financial risks and ultimately increase costs for customers. *See Midcontinent Indep. Sys. Operator, Inc.*, Response of the MISO Transmission Owners to the Order to Show Cause, Docket No. EL24-80-000 (Sep. 11, 2024) (describing financial risks of various funding mechanisms). If the Commission adopts direct assignment, the MISO Transmission Owners request that the Commission allow transmission providers to request deviations as needed to support a safe and reliable system. *See supra* note 63.

9. **Ninth Principle:** “[T]o the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.”⁶¹

Consistent with Order No. 845, the MISO Tariff’s *pro forma* GIA⁶² provides a generator interconnection customer with the unilateral option to build the transmission owner’s interconnection facilities and stand-alone network upgrades with accepted independent entity variations.⁶³ While the MISO Transmission Owners oppose extending the option to build to large load owners, if the Commission ultimately determines to extend this option, the MISO Transmission Owners request that the Commission allow, as it did in Order No. 845, transmission providers to request deviations from any final rule.

Large load owners typically have not been involved in construction of transmission facilities and are not in the same position as transmission owners when it comes to knowledge and expertise regarding transmission facilities. While large load owners may be sophisticated in other technical fields, there is no demonstration that these customers would bring similar experience to the construction of integrated network transmission facilities to construct. Accordingly, the MISO Transmission Owners do not support providing large loads with the option to build.

If the Commission does offer an option to build to large loads, the MISO Transmission Owners suggest the Commission, consistent with Order No. 845 also: (1) limit the option to build to the construction of transmission owner’s interconnection

⁶¹ ANOPR at P 26.

⁶² See MISO Tariff, Attachment X, Appendix 6, Articles 5.1.3, 5.2.

⁶³ *Midcontinent Ind. Sys. Operator, Inc.*, 169 FERC ¶ 61,221, at P 44 (2019) (accepting MISO’s proposed independent entity variation to reconcile the option to build with transmission owner initial funding in the MISO Tariff).

facilities and stand-alone network upgrades; (2) require all facilities to be built to the standards and specifications provided in advance by the transmission owners; and (3) give the transmission owner the right to approve the engineering design, equipment acceptance tests, and construction.⁶⁴

10. **Tenth Principle:** “[A]n existing generating facility that seeks to enter a partial suspension to serve a new load at the same location must go through a system support resource (SSR)/reliability must run (RMR) type study. The study must consider system conditions, including forecasted load growth, at least three years after the proposed suspension date. The partial suspension can only proceed after any network upgrades needed to ensure reliability are placed into service. Any such network upgrades shall be the responsibility of the generating facility. We invite comments on whether and how resource adequacy should be considered in the SSR/RMR type study.”⁶⁵

The MISO Transmission Owners agree that, as a general matter, existing generation that enters into a co-location arrangement with a large load owner should be studied, particularly with respect to reliability impacts and impacts on the transmission system. The scope and procedures of such a study may need to be flexible to accommodate any unique features of individual arrangements. For example, MISO’s SSR studies and related provisions only apply in situations where a generator completely disconnects from the grid because it is suspending operations or is retiring. If an existing generation resource seeking to co-locate with a large load owner plans to completely disconnect from the transmission system to serve that load, an SSR study may be required consistent with MISO’s Tariff.⁶⁶ If that existing generation resource instead remains connected synchronously to the transmission system, such an arrangement would likely not implicate the same reliability

⁶⁴ Order No. 845 at PP 85, 91, 110.

⁶⁵ ANOPR at P 27.

⁶⁶ MISO Tariff, section 38.2.7.

concerns associated with a generator completely disconnecting from the transmission system, warranting a different type of study.

With respect to resource adequacy, the MISO Transmission Owners recognize that states play a leading role in this area, particularly in MISO.⁶⁷ Therefore, any decisions regarding whether a generator could stop serving LSE load in order to serve a large load entity would likely come before a state commission.

Regarding who bears responsibility (cost or construction or something else) for any network upgrades associated with a co-location arrangement as described above, the MISO Transmission Owners caution that such assignment of any responsibility should be situation-specific. For example, in some instances, a network upgrade may not be needed to solve a NERC reliability violation caused by a generator disconnecting from the transmission system. Rather, consistent with MISO's SSR provisions, an alternative such as redispatch/reconfiguration based on MISO instruction or remedial action plans may be

⁶⁷ *Midwest Indep. Transmission Sys. Operator, Inc.*, 122 FERC ¶ 61,283, at P 68 (2008) (“[W]e agree . . . that the states should play a central role in developing resource adequacy policies for the region. . . . [T]he fact that we have jurisdiction in this area does not mean that resource adequacy proposals cannot be developed by the states ‘in the first instance.’”); *Midcontinent Indep. Sys. Operator, Inc.*, 170 FERC ¶ 61,215, at PP 108 (2020) (“We reiterate that state and local authorities play an active role in ensuring resource adequacy, even those states with retail competition (i.e., Illinois and Michigan).”), 118 (“MISO supports the independent authority of state regulators for resource adequacy and facilitates resource adequacy goals with state regulators that have decision-making authority over the amount and types of resources that are necessary to meet shared objectives.”); *see also* Comments of Todd Ramey on Behalf of Midcontinent ISO Inc., Docket No. AD25-7-000, at 12 (May 28, 2025) (“Since MISO’s inception, deference has been made to the jurisdictional authority of the states and other [Relevant Electric Retail Rate Authority] with respect to resource adequacy rights and responsibilities that [Relevant Electric Retail Rate Authorities] take seriously.”).

appropriate.⁶⁸ Even if a network upgrade is needed to address a generator disconnecting, such an upgrade may already have been identified in MISO's MTEP to address unrelated transmission issues. In that case, according to MISO's SSR provisions, such costs would generally not be allocated to the generator but would rather flow through Attachment FF of the MISO Tariff as usual.⁶⁹

11. **Eleventh Principle:** “[U]tilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy that is being transmitted across the transmission system to the load.”⁷⁰

See comments on the Twelfth Principle.

12. **Twelfth Principle:** “[U]tilities serving large loads, including those at hybrid facilities, should be responsible for ancillary services based on peak demand, without consideration of any co-located generation. Any co-located generating facilities will similarly be fully compensated for the provision of ancillary services.”⁷¹

The Eleventh and Twelfth Principles, if implemented, would mark a significant departure from MISO's current cost allocation methodologies for transmission and ancillary services, not to mention longstanding Commission precedent. Under Schedule 9 of MISO's Tariff, network service costs are based on peak load.⁷² The Eleventh Principle appears to net the load and generation for purposes of establishing the transmission service

⁶⁸ MISO Tariff, section 38.2.7.c

⁶⁹ *Id.*, section 38.2.7.e.iii; *id.*, Attachment FF.

⁷⁰ ANOPR at P 28.

⁷¹ *Id.* at P 29.

⁷² MISO Tariff, Schedule 9 (Network Integration Transmission Service), section 3(a).

requirements, which is not permitted by MISO's Tariff.⁷³ Regarding ancillary services, load pays for ancillary services based on use.⁷⁴ In the day-ahead and real-time operating reserve markets, the costs for ancillary services products (e.g., spinning, supplemental, regulation and short-term reserves) are paid by the load on an hourly basis.⁷⁵ The ancillary services needed for a reserve zone are procured from generation in that reserve zone and the costs are allocated to load based on their load ratio share in the reserve zone.⁷⁶

In general, the MISO Transmission Owners are concerned that the Eleventh and Twelfth Principles raise significant cost allocation concerns, as well as undue discrimination concerns. First, consistent with Order No. 888, MISO's Tariff allows for two types of transmission service: network service and point-to-point service. MISO also does not permit the netting of load and generation for purposes of establishing the transmission service requirements. To the extent the Eleventh Principle is attempting to change these rules for large loads, the MISO Transmission Owners have concerns that the proposed cost allocation would not be roughly commensurate with the benefits to large loads. Second, the ANOPR does not explain why load and large loads/hybrid facilities are not similarly situated such that large loads/hybrid facilities may be treated differently.

⁷³ *Id.*, Schedule 9 (Network Integration Transmission Service), section 1.

⁷⁴ *Id.*, Schedule 3 (Regulating Reserve), section III; *id.*, Schedule 5 (Spinning Reserve), section III; *id.*, Schedule 6 (Supplemental Reserve), section III.

⁷⁵ *Id.*, Schedule 5 (Spinning Reserve), section II & Schedule 51 (Short-Term Reserve), section II.

⁷⁶ *Id.*, Schedule 3 (Regulating Reserve), section III; *id.*, Schedule 5 (Spinning Reserve), section III; *id.*, Schedule 6 (Supplemental Reserve), section III.

Lastly, the MISO Transmission Owners would be opposed to the Eleventh Principle to the extent it would dictate whether a retail sale has occurred, which is impermissible.⁷⁷

13. **Thirteenth Principle:** “[T]here must be a plan to implement these proposed reforms. We seek comment on appropriate transition plans, including the treatment of large load interconnections that are already being studied for interconnection.”⁷⁸

For the reasons explained throughout, the MISO Transmission Owners oppose a generic, one-sized approach to interconnecting large load. Time spent participating in and complying with any such rulemaking is time not spent on supporting load growth in the region. Another alternative to taking generic action is to issue a policy statement to guide the industry regarding large load interconnections. Such action would allow the Commission to support and guide the industry in crafting solutions tailored to their regions.

However, if the Commission does elect to pursue any of the ANOPR reforms, the MISO Transmission Owners respectfully request that any compliance or transition period clearly take into account the magnitude and complexity of the reforms being contemplated. The more significant the reforms, the greater the need for a longer compliance period to meet with stakeholders, establish new processes, and develop new technological capabilities, along with a flexible implementation and transition period. In addition, any such reforms should be solely limited to new load additions or future requests to increase the size of existing loads. Existing or new large load additions that are currently being considered should also be grandfathered and not subject to the reforms. For example,

⁷⁷ *Ind. Mun. Power Agency v. PJM Interconnection, L.L.C.*, 172 FERC ¶ 61,243, at P 94 (2020) (clarifying that an RTO/ISO cannot determine whether a state-jurisdictional retail sale has occurred, whether by means of monthly netting or otherwise, as that is within the jurisdiction of the states).

⁷⁸ ANOPR at P 30.

similar to the Commission's approach in Order No. 2023, the Commission should consider the date upon which any agreements to increase existing load or to interconnect new load were entered into when determining the applicability of any reforms.⁷⁹ At minimum, however, the MISO Transmission Owners would expect a time period of at least one year to have any reforms become effective to permit sufficient time to meet with stakeholders, establish new processes, and develop new technological capabilities.

14. **Fourteenth Principle:** “[U]tilities serving large loads must meet all applicable NERC reliability standards and OATT provisions. Utilities and we must be prepared to revise large load interconnection procedures and agreements, as necessary. NERC should review its reliability standards to determine if new registration categories or new or modified reliability standards are required to ensure reliability of the BES.”⁸⁰

The MISO Transmission Owners support ensuring that large loads are interconnected to the grid in a safe and reliable manner. NERC has already begun examining these issues through its LLTF which has issued preliminary guidance for comment from stakeholders.⁸¹ These ongoing efforts are critical to supporting the work of grid operators as they encounter new and emerging risks that are unique to different parts of the grid. To the extent any new standards are proposed from such efforts, the MISO Transmission Owners urge the Commission to limit such standards to new loads or increases in existing loads and to consider thoughtfully any input provided by NERC,

⁷⁹ See generally Order No. 2023 at PP 855, 865-69.

⁸⁰ ANOPR at P 31.

⁸¹ *Preliminary DRAFT Reliability Guideline: Risk Mitigation for Emerging Large Loads*, North American Electric Reliability Corporation (May 2026), https://www.nerc.com/globalassets/who-we-are/standing-committees/rstc/draft_reliabilityguideline_riskmitigationforemerginglargeloads.pdf.

including input concerning the time that NERC may need to develop additional standards to address large load interconnections.

III. COMMUNICATIONS

The MISO Transmission Owners request that all correspondence, communications, pleadings, and other documents related to this proceeding be addressed to:

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IV. CONCLUSION

The MISO Transmission Owners respectfully request that the Commission consider these comments in any future rulemaking in this proceeding.

Respectfully submitted,

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